

STATE OF NEW YORK

1158--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 9, 2025

Introduced by M. of A. SEAWRIGHT, COLTON, GALLAGHER, GONZALEZ-ROJAS, SIMON, HYNDMAN -- read once and referred to the Committee on Insurance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the insurance law, in relation to including second degree relatives in certain criteria for breast cancer screenings to be covered under insurance plans

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Item (i) of subparagraph (A) of paragraph 11 of subsection
2 (i) of section 3216 of the insurance law, as amended by chapter 414 of
3 the laws of 2017, is amended to read as follows:

4 (i) upon the recommendation of a physician, a mammogram, which may be
5 provided by breast tomosynthesis, at any age for covered persons having
6 a prior history of breast cancer or who have a first or second degree
7 relative with a prior history of breast cancer;

8 § 1-a. Item (i) of subparagraph (A) of paragraph 11 of subsection (i)
9 of section 3216 of the insurance law, as amended by chapter 424 of the
10 laws of 2024, is amended to read as follows:

11 (i) upon the recommendation of a physician, a mammogram, which may be
12 provided by breast tomosynthesis, at any age for covered persons having
13 a prior history of breast cancer or who have a first or second degree
14 relative with a prior history of breast cancer;

15 § 2. Item (i) of subparagraph (A) of paragraph 11 of subsection (l) of
16 section 3221 of the insurance law, as amended by chapter 143 of the laws
17 of 2019, is amended to read as follows:

18 (i) upon the recommendation of a physician, a mammogram, which may be
19 provided by breast tomosynthesis, at any age for covered persons having
20 a prior history of breast cancer or who have a first or second degree
21 relative with a prior history of breast cancer;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD03149-03-5

1 § 2-a. Item (i) of subparagraph (A) of paragraph 11 of subsection (l)
2 of section 3221 of the insurance law, as amended by chapter 424 of the
3 laws of 2024, is amended to read as follows:

4 (i) upon the recommendation of a physician, a mammogram, which may be
5 provided by breast tomosynthesis, at any age for covered persons having
6 a prior history of breast cancer or who have a first or second degree
7 relative with a prior history of breast cancer;

8 § 3. Subparagraph (A) of paragraph 1 of subsection (p) of section 4303
9 of the insurance law, as amended by chapter 414 of the laws of 2017, is
10 amended to read as follows:

11 (A) upon the recommendation of a physician, a mammogram, which may be
12 provided by breast tomosynthesis, at any age for covered persons having
13 a prior history of breast cancer or who have a first or second degree
14 relative with a prior history of breast cancer;

15 § 3-a. Subparagraph (A) of paragraph 1 of subsection (p) of section
16 4303 of the insurance law, as amended by chapter 424 of the laws of
17 2024, is amended to read as follows:

18 (A) upon the recommendation of a physician, a mammogram, which may be
19 provided by breast tomosynthesis, at any age for covered persons having
20 a prior history of breast cancer or who have a first or second degree
21 relative with a prior history of breast cancer;

22 § 4. This act shall take effect on the sixtieth day after it shall
23 have become a law and shall apply to all policies and contracts issued,
24 renewed, modified, altered or amended on or after such date; provided,
25 however, that if chapter 424 of the laws of 2024 shall not have taken
26 effect on or before such date then sections one-a, two-a and three-a of
27 this act shall take effect on the same date and in the same manner as
28 such chapter of the laws of 2024 takes effect.